

Reforming the Court Auxiliaries

Reforming the family courts themselves is only part of the task ahead, if we are to rescue the system from ignorance, bias, and malfunction. As we have seen, family courts are integrally related to a number of auxiliary actors who play decisive roles in the way the system functions. Unless they are reformed along with the courts, reform will probably be fruitless. Accordingly, we propose reforms for the three most important of the family court auxiliaries: law guardians, custody “evaluators,” and social services agencies.

LAW GUARDIANS

Law guardians appointed to represent the “best interest” of minor children who have reported abuse (and supposedly to safeguard their rights in the family court process) bear a grave responsibility to their young clients—and to society. Who, outside the family court system, would imagine that this responsibility comes with almost a total absence of regulation or oversight? Yet, as we have seen, law guardians are virtually exempt from all control and regulation. Even if they knowingly suppress evidence that their clients have been abused, even if they recommend the clients’ placement in conditions they know are dangerous, even if they claim to represent their clients’ interests without so much as speaking to them—and we have seen examples of such conduct in Part

II of this book—they enjoy almost complete protection from discipline and immunity from liability.¹

This protection springs, in part, from the curious notion that the role of law guardian is closer to that of the judge than that of a legal advocate. If a lawyer does not properly represent their *adult* client, he is subject to discipline—and if they are negligent of their duties, they can be sued for damages. But this is not true of a law guardian who represents an *underage* client. The law almost everywhere favors law guardians with immunity from suit even when the law guardians are negligent, even grossly negligent, in their representation, because this privilege runs parallel to the immunity enjoyed by *judges*.²

It is hard to see who benefits from such immunity, other than incompetent or corrupt law guardians. Good ones are no more likely to be sued for their actions than other lawyers are. And why should lawyers appointed to represent clients whose tender age makes them particularly vulnerable to misconduct be protected from the consequences of such misconduct? We recommend that law guardians be subject to liability for negligent representation just as other legal advocates are, although they will remain protected from unfair complaints because their good-faith compliance with the accepted ethical standards should operate as a complete defense to a civil or disciplinary action.

Ethical Guidelines for Law Guardians

This brings us to the next problem: there are no such ethical guidelines in place. Law guardians appointed to represent children operate under no comprehensive set of ethical directives, such as those set out for judges in the Code of Judicial Conduct. Lawyers (most law guardians and guardians ad litem [GALs] in family court matters are lawyers) and mental health professionals (and those GALs who are not lawyers are usually mental health professionals) do have general eth-

ical standards that govern members of their professions. But these guidelines—which, as we will see, are rarely enforceable in any event under today’s circumstances—do not address the special responsibilities of representing a minor child in abuse-related litigation.

We believe that a national set of such standards should be promulgated. They should include, at a minimum, such ethical guidelines for law guardians as the following:

1. A law guardian must communicate with their client. They must meet the child or children they represent; must consult them, where possible, before taking any action or position; and must inform them in an age-appropriate manner of what they are doing.³
2. When a law guardian feels that they must make a recommendation that is contrary to the wishes of the child, they must inform the court candidly of the child’s wishes, state that their own recommendation contravenes the child’s wishes, and offer clear reasons why they are making their recommendation despite the wishes of the child. This *must* be part of the court record of any such recommendation, and the law guardian must be subject to questioning on this issue by either parent (or their lawyers).
3. A law guardian must conduct a fair, thorough, unbiased investigation into the relevant facts, including all allegations concerning abuse. The law guardian must properly document this investigation and inform the court and all parties, at the appropriate time(s), what evidence has been considered, which experts and witnesses have been consulted, and so forth.
4. The law guardian must share with the court, and the parties, any evidence relevant to the child’s best interest, even if it does not tend to support the position the law guardian is taking. (For instance, if they have decided to recommend against a finding that abuse occurred, they are still obligated to share with the court all evidence suggesting that it did.)

5. The law guardian must bear in mind, at all times, that they represent the child and that they do not represent either of the parents. They are not an advocate for either of them, even if their recommendations will favor one over the other. Thus, the law guardian must not litigate, nor unnecessarily give the appearance of litigating, as one parent's unofficial advocate. For instance, it is unethical for a law guardian to arrange to pay the expenses of a witness chosen by one parent to testify against the other, or of an expert whose sole purpose is to support one parent or to criticize the other. (We do not mean to bar law guardians from obtaining their own expert witnesses, whose role is to evaluate all parties, even if their ultimate conclusions support one parent over the other. We have shown in Part II, Chapter 5 of this book, however, that law guardians have paid "experts" whose role was partisan from the outset and who should have been paid by the father whose case they were obviously intended to bolster.) Similarly, a law guardian should not pay court costs, filing fees, transcript costs, copying charges, or other such litigation costs incurred by one of the adversarial parents. Law guardians should also take care not to appear to take sides in other ways, such as sharing private notes at a counsel table with one parent during a trial.
6. A law guardian must not communicate secretly with expert witnesses or with either parent. Both parties should be informed of the communication between the law guardian and either parent, or between the law guardian and an expert connected with the case. This is because law guardians, as we have seen, play an unusual role in family court litigation in which their special advisory relationship to the court makes them unlike adversarial litigants.⁴ Thus, when a law guardian communicates with one side, the other has a right to know about it before the law guardian offers advice to the court based on such communication; and when a law guardian

communicates with an expert witness, certainly both parties should be notified.

Enforcement of Ethical Guidelines

The knowledge that they can be sued for negligent performance of their duties would help deter law guardians from flagrant misuse of their powers. But what about the ethical guidelines we advocate above? How can these be enforced?

Ethical guidelines that govern lawyers in general are enforced by disciplinary committees in every state. But, as we have seen, law guardians who represent minor children in family courts—even if they are lawyers, as most of them are—are exempt in practice from such review. Disciplinary committees decline to intervene, claiming that law guardians are answerable only to the judge who appointed them.

This is obviously wrong. Disciplinary rules should make plain that a lawyer remains subject to the authority of disciplinary committees even when they represent a minor child. At the very least, law guardians who are lawyers should be subject to the same ethical conduct standards and the same professional review as their colleagues.

But more is needed. Since the problems faced by law guardians are in some respects specialized, there should also be a special forum for reviewing law guardian misconduct, a subcommittee or division that specializes in ethical considerations relevant to lawyers who are appointed to represent minors in abuse-related litigation.

These committees must deal with at least one unusual procedural feature. Generally, it is a lawyer's client or former client who lodges a complaint against them. In the case of a law guardian, the client is a minor and cannot be expected to file grievances. We believe these committees should accept complaints against law guardians from any party

involved in the litigation—which, of course, includes the mother. Waiting for a child client to reach the age of majority is obviously impractical.

It is of great importance that these complaints be handled in a timely fashion. We have often found that disciplinary committees—even when they can be persuaded to respond to complaints against law guardians in the first place—refuse to consider the merits of a complaint, on the grounds that the case is still before the court. This excuse should be specifically rejected by a subcommittee specializing in law guardian complaints. After all, once a case is really over, disciplinary agencies are just as reluctant to intervene, using the excuse that the complaint is now too old for anything to be done about it. And even if the committee takes some action, correcting the inadequate or biased procedures of a law guardian will do little good if the real harm to the child—an improper removal or change of custody—has already been finalized.

Specific Terms of Appointment

Law guardians are also answerable to the judges who appoint them, and this gives family court judges an opportunity to curb law guardian abuses. It is an opportunity rarely exercised. However, there is one way in which family courts can limit such abuses or even prevent them before they occur. And this should be required of family courts as part of the rules that govern the appointment of law guardians.

The needed reform is simple: family courts, when appointing a law guardian to represent a minor child, must spell out the precise purpose of the appointment. For example, if the law guardian is appointed to represent the child because allegations of sexual abuse have been raised, the terms of their appointment should be limited to the responsibilities flowing from that purpose. The law guardian must behave only in keeping with the terms of their appointment; they have no powers outside those terms, and if they act outside them, their actions are subject to challenge by a motion to the court.

The consequences of such a rule would be most keenly felt in cases in which a law guardian is appointed because of allegations of abuse, where those allegations are ultimately rejected by the courts. When this happens, the law guardian's appointment should automatically terminate. Thus, a law guardian who disbelieves the abuse allegations due to (the terms for) which they are appointed would at least be unable to continue to litigate in the case after the dismissal of the charges—as so many law guardians have done—as a free advocate for the accused father. In many cases, law guardians have even caused public money to be spent in advocacy for a father who seeks custody after being accused of abuse—even though the only reason the law allowed their appointment was to give the child a representative in court with respect to the abuse allegations.

For example, suppose a father accused of sexually abusing his child is found not to have committed the abuse—and the mother appeals. The law guardian appointed for the child to deal with the abuse allegations should *not* be permitted to file a brief with the appellate court on the father's behalf. If their position is that no abuse occurred, they should have no legal standing to defend a family court's finding to that effect. Their role in the case is at an end.⁵

On the other hand, if the law guardian believes that abuse *did* occur and the family court rules otherwise, it is logical that he may file an appellate brief seeking the reversal of the lower court's ruling. In such a case, their role continues; they are still an advocate for an allegedly abused child. However, once appeals are at an end and the courts have rejected the allegation of abuse, the law guardian has no more legal standing to take any action whatever.

The adoption of this rule would prevent law guardians from outlasting the rationale of their appointments. And it would bar law guardians from becoming free advocates for one parent over the other. For if a law guardian can file an appellate brief supporting a finding that no abuse by the father occurred (and opposing the appeal of the mother who believes

it did), they are simply taking over the role the father himself should be playing in the litigation. This results in letting a private litigant have his custody case made for him by the state. A law guardian should not play such a role.

Law Guardian Training

Just as family court judges should be required to attend courses that deal with child abuse allegations and the penalization of protective parents, law guardians ought to receive special training for the grave responsibilities their role thrusts upon them. The easiest way to accomplish this is to add such training to the requirements of continuing legal education (CLE), which many lawyers must satisfy in any case. It should be an elective, of course, to be taken only by those lawyers who take appointments as law guardians. But for them, such training would be an essential element of the reforms needed to curb family court abuses.

CUSTODY EVALUATORS

Custody evaluators (generally psychologists) are, in one sense, a little farther along the road to progress than law guardians are: the American Psychological Association has already established standards and guidelines for custody evaluations. These guidelines curtail evaluators' authority to make custody and visitation recommendations to a court. But in another sense custody evaluators are no closer than law guardians are to meeting what we regard as "minimal standards of justice," because nothing in the guidelines addresses the peculiar problems faced by protective parents. As we have seen, custody evaluators can and do rely on unscientific theories to attack mothers who suspect their children's fathers of sexual abuse. They can and do ignore their proper function and play the mixed role of judge and prophet, urging family

courts to punish mothers who suspect abuse for “violating” court orders (concerning visitation, shared custody, etc.) before any violations have occurred. And they allow their reports and evaluations—formulated without any of the protections that are part of a trial—to serve as the basis for catastrophic child removal and change-of-custody orders.

To make matters worse, family courts tend to accept uncritically the conclusions offered by custody evaluators. As Timothy Tippins, a distinguished matrimonial lawyer in New York, stated in a 2003 article in the *New York Law Journal*:

Mental health opinions can spell the end of the line for the disfavored parent because of the indicia of authoritativeness they have come to carry, an aura that emanates from the assumption that the opinion rests on scientifically reliable and valid principles and procedures. Sadly, that assumption is often unwarranted.⁶

And Dr. Gary Melton and several of his colleagues, in a leading text on forensic custody evaluations, lamented:

here is probably no forensic question on which overreaching by mental health professionals has been so common and so egregious. Besides lacking scientific validity, such opinions have often been based on clinical data that are, on their face, irrelevant to the legal questions in dispute.⁷ (T)

For these reasons, we propose that the guidelines be expanded to include standards concerning the introduction of such non-science science as “Parental Alienation Syndrome” (PAS) and the proper role of the evaluator in a case in which abuse is alleged. Specifically, an evaluator should not be permitted to recommend a change of custody as a punishment that a court would otherwise be forbidden to impose (such as, in a case in which a mother has not violated a court order but the

evaluator considers her suspicions of abuse as tantamount to such a violation). Likewise, an evaluator must be ethically limited to relying on theories and methodologies that pass muster under the applicable legal standards (as PAS does not).

Another important step toward a juster evaluation process is the standardization of the evaluations themselves. This has been proposed by attorney Lynn Hecht Schafran, Director of the National Judicial Education Program (a project of the NOW Legal Defense and Education Fund).⁸ Activists Karen Anderson and Constance Valentine, who in 1998 founded the California Protective Parent Association, have drafted a protocol for custody evaluators in collaboration with attorney Meera Fox (who founded Child Abuse Solutions, Inc., a California-based consulting firm for matrimonial lawyers and expert witnesses who deal with child abuse charges that arise during custody litigation). This protocol lays out all the steps of a comprehensive evaluation. Fox has used this to train custody evaluators, and its wider use would probably lead to better, fairer, and better documented custody evaluations.

Of particular interest is the portion of this protocol that deals with possible sexual abuse of a child. It lists many behavioral indicators that differentiate children who report sexual abuse, based on the important work of William Friedrich, PhD, of the Mayo Clinic, published in the January 1993 edition of *Violence Update*.⁹ According to this protocol, an evaluator must note the frequency of behaviors such as rubbing against or hugging complete strangers, making sexual sounds or trying to French kiss, verbalizing sexual words or acts, or engaging in flirtatious conversation—among many others—before reporting a conclusion as to the likelihood that sexual abuse occurred. If all evaluators followed such a guide, they would find it much more difficult to conclude glibly that a child who displays such behaviors was “coached” to report abuse by their mother. It is one thing to “coach” a child to report abuse; it is a very different matter to “coach” a child to display a wide variety of such overtly sexual behaviors.

Obviously, it is difficult to legislate how custody evaluators should evaluate data once an examination has been completed. However, it should be obvious that, at the very least, evaluators must accurately represent a subject's test scores. It should also be obvious that when both parents in a custody evaluation have similar test results or behaviors, the evaluator's resulting conclusions should be similar. When an evaluator reaches very different conclusions about two parents based on similar data, their methods are fundamentally suspect. Finally, it should be obvious that a so-called expert should not reach conclusions based on intuition or personal biases.

Unfortunately, cases that violate these rules are not at all rare. In a 1995 North Dakota case, for instance, an appellate judge registered concern with a court-appointed psychologist who had interpreted similar test results for the two parents in radically different fashion.¹⁰ Although the father showed "anger and hostility," the psychologist dismissed these feelings as understandable and predicted (on the basis of no visible evidence) that they would disappear once the custody dispute was resolved. The mother's emotions, however, were a different matter: the psychologist attributed them to "hysteria" and called her allegations of being stalked and harassed (despite her description of several specific episodes) as "paranoid and delusional."

In another recent case, this one in New Jersey, the custody evaluator appointed by the court claimed that the mother was "narcissistic" and that, as a result, she could be expected to interfere with the father's relationship with the couple's child if she were granted primary custody. When the objective test results he obtained were reviewed by another psychologist, however, it turned out that the evaluator had not correctly represented the mother's test scores to the court. The second psychologist, an expert on the scoring of psychological tests, was sharply critical of the evaluator's methods:

[T]here are significant questions as to the validity of his interpretation of these tests.... [The mother's] MMPI-2 profile revealed very little indication of any psychological problems, inappropriate interpersonal behaviors, or negative character traits.... There was no evidence, from her MMPI profile, of any excessive hostility, histrionic personality characteristics, or repression/defensiveness (although these characteristics were all cited by [the evaluator] in his report).... In short, there is simply no evidence, in her MMPI-2 profile, to support any of the interpretations offered by [the evaluator].... His failure to resolve, nor even acknowledge, the discrepancy between the two psychological tests administered is troubling, particularly given the fact that the more widely accepted and well-validated of the two tests revealed essentially no problematic behaviors or personality characteristics.¹¹

(Family courts being what they are, there was nothing the mother could do to seek any sort of disciplinary action against the evaluator, who is presumably free to misinterpret test scores in future custody evaluations.)

And Dr. Jeffrey Wittmann, who has personally performed over fifteen hundred custody evaluations, makes it just as clear that conclusions based on personal, unscientific factors are not unheard of in custody evaluations:

Statements derived solely from "intuition," clearly limited clinical contact, speculation ... or those representing strong personal bias unsupported by research or clinical data should be evaluated as "unscientific." ... Mental health professionals often make less extreme, yet "unscientific" statements.... Our field is famous for supporting conclusions during testimony simply on the basis of "accumulated clinical experience," a phrase which may mean nothing more than accumulated personal bias.¹²

Examples and statements like these make it clear that custody evaluators do not always follow even minimally proper procedures.¹³ Courts must therefore look carefully at all such evaluations and must explain, in their decisions, exactly how their judicial conclusions have been reached.¹⁴ Such a procedure tends to expose reliance on skewed or biased analysis on the part of the evaluator and thus tends to minimize the abuse of the system by a biased expert.

As one judge on New York's highest court observed in a 1997 case: Experts, who predict future consequences based on their professional theories and examinations of subject children, should not be elevated to the singular importance of, in effect, overriding the array of pertinently balanced jurisdictional protections afforded to decrees affecting one of society's most sacrosanct relationships—parent and child. Courts must beware lest the unique juridical authority to decide these cases be sacrificed to the sheer crosswinds of paid or even so-called independent experts.¹⁵

A few procedural reforms seem likely to curb at least some of the worst abuses in this area of family court litigation.

For one thing, although it is already spelled out in the Code of Judicial Conduct that a judge should not hold *ex parte* communication with an expert witness, it should be spelled out in no uncertain terms that for the expert, too, such behavior is *per se* unethical. It should be noted here that one prominent custody evaluator, Dr. Arthur Green (described in Part II, Chapter 7 of this book), actually told one of us that he routinely spoke with the judge in a family court case as soon as he was appointed, to get what he called a “thumbnail” of the case. In practice, such communication is fraught with potential for abuse and is often used to give the expert their conclusion before they begins his evaluation.

Second, Timothy Tippins has argued—rightly, we believe—that the common practice of custody evaluators submitting their reports to a family court judge *before* trial must stop. This is because when an

expert presents evidence in a court of law, their credentials and their methods are subject to preliminary questioning before their testimony can be admitted—a procedure known as *voir dire*. Then the expert's conclusions may be challenged, either by objection or through cross-examination. As a result, the expert's conclusions—which can be devastating to one party or the other—may never be admitted into evidence at all. But if the expert's report is admitted ahead of time, without anyone having an opportunity to question or challenge the expert concerning how they reached their conclusions, the judge will already learn the expert's "findings" and may not be able to ignore them, even if they ultimately do not pass muster in their court once trial begins. Since family court judges act as juries as well in nearly all cases, this common procedure is completely unacceptable, bypassing important legal safeguards. It should be prohibited.

At the same time, it is critical that the expert's report, together with all the bases of the opinion and the circumstances surrounding the evaluation, be disclosed to the *parties* well before trial. This should be as detailed as possible. As the well-known custody evaluator David A. Martindale, PhD, has written:

The role of an expert ... is to assist the trier of fact. Doing so requires that evaluators report all pertinent information, including information supportive of a recommendation different from that offered in the advisory report. Custody evaluators are reasonably expected to be thorough in reporting the information that they have gathered.¹⁶

Moreover, expert witnesses should not be allowed to charge excessive fees for evaluations. In most cases, the evaluator's fee is paid by the litigants, and where the fee is excessive, the weaker financial party (usually the mother) suffers most. To make matters worse, hostile evaluators sometimes complain to the family court judge even before trial when a mother has been slow in paying her portion of the fee—asking the judge

to order, under threat of contempt, that the mother make her payment. This tactic neatly turns a judge against an impecunious mother before her case has even reached trial, and it also serves as an extortionate device by which a mother afraid of incurring the court's wrath will pay any fee at all, no matter how high. For this reason, any measure that tends to standardize or limit such fees would be welcome. And experts should be required to commence separate proceedings to recover their fees. It is possible that the use of "junk science" theories can be banned from family courts by specific legislation, but so far this seems unlikely. Controversial theories such as PAS were the targets of proposed legislation in 2003 in two states, Texas and Virginia, but neither remedial bill became law. Thus, we believe that the implementation of standards like those we have laid out above is more likely to effect the necessary reforms. And if such reforms are made part of the systemic standards required by the Child Abuse Prevention and Treatment Act (CAPTA), they—like the judicial reforms we advocated above—can be effected at the national level.

SOCIAL SERVICES

Every reader of this book will know, from reading Chapter 6, that many abuses are committed by Child Protective Services (CPS) agencies in cases involving child sexual abuse allegations. As with the family courts themselves, the malfunction of CPS agencies is rooted in fundamental misconceptions that can be corrected only through the "rebirthing" of the system, which we envisaged in Chapter 9. What we propose here are more pragmatic reforms aimed at containing at least the most obvious types of agency misconduct. Like the other reforms we propose, these can be made effectively at the federal level by incorporating them into CAPTA, as described above.

Training

Obviously, CPS workers must (and do) receive training before they can serve as caseworkers for the state in such sensitive matters. Training is required of all such workers in each state. What is not currently required—as it should be—is training that deals specifically with family court abuses.

We propose that every social worker employed by a state CPS agency be required to take a course, to be accredited by the National Association of Social Workers, that will warn caseworkers of the impropriety of such conduct as:

1. Accusing a parent of abuse or neglect simply to force them to comply with agency directives.
2. Accusing a parent of abuse or neglect when there is no evidence that a child is in harm's way, simply because a caseworker would like to intervene in the family's affairs.
3. Accusing a mother of child abuse or neglect based on theories without scientific validity.
4. Accusing a mother of abuse or neglect when the definitions of abuse or neglect set out in the state's statutes are not met. In addition, caseworkers should be trained in the basic elements of legal procedure involved in abuse/neglect cases. For instance, they should know the legal standards for seeking removals, emergency intervention, and the termination of parental rights. Our analysis in Part II of this book has shown that many CPS workers are either grossly ignorant of the legal standards or ignore them. This should be changed.

Procedures

Again, it should be obvious that certain procedural reforms should be built into the applicable regulations governing the conduct of CPS agencies. These reforms are simple and—to family court outsiders—will doubtless seem unnecessary to state. But too many devastating disruptions of family life have occurred because CPS agencies have wantonly ignored even these procedural norms.

First, no CPS agency has the right to withhold agency records from a child's mother simply because CPS is pursuing a case against her. Unless a mother's parental rights have been terminated by a court order, only a specific court order may serve to allow a CPS agency to withhold any information or records in a case from the mother or her lawyer. And such orders may only be based on overriding need.

In most states, abuse or neglect petitions are signed by an employee of the social services agency responsible for issuing them. However, in many cases these petitions are signed by individuals who have no knowledge whatsoever of the facts of the case. Since these petitions can have devastating consequences, we propose that each such petition be signed, or at least countersigned or otherwise verified, by a caseworker who, by signing, claims to be personally familiar with the facts of the case and believes that the allegations stated in the petition are true and that abuse or neglect is properly alleged under the circumstances. This should be true *a fortiori* of motions or petitions seeking the removal of a child or some other action from a family court. In such cases, affidavits are nearly always required in support of the agency's request. But we believe that the relevant statutes should require that all such affidavits state explicitly that the signatory is personally familiar with the facts of the case and swears to the truth of the allegations contained in the papers. Too often, as we have seen, CPS agencies file such motions supported by generally worded affidavits from supervisors who do not claim (and certainly do not have) any firsthand knowledge of the facts.

Such affidavits should be treated as legal nullities—but in practice they are not. And by the time a protective mother is able to challenge such a motion in court, CPS is usually prepared with a new set of allegations, so that the improper removal in the first place remains uncorrected for months—if, indeed, it is ever corrected. A specific statutory requirement of what should be a commonsense rule would deter courts from ordering removals when such evasive procedures are used by CPS.

We further recommend, as a deterrent to the use of invalid petitions by CPS, that the signing of clearly improper or baseless neglect or abuse petitions (or other CPS court papers) should be grounds for internal discipline by the agency.

Finally, state statutes should guarantee that CPS employees who disclose the truth about agency failure in cases involving abuse allegations may not be the objects of retaliation by the agency.

Regulation and Control

We noted that law guardians have, for too long, enjoyed virtually absolute immunity from lawsuits arising from their misconduct in abuse-related cases. The same is true of CPS agencies, which, as arms of government, are immune from suit as long as they work in “good faith.” There are reasons for this. Government agencies would be hamstrung in their functions if they faced lawsuits from disgruntled citizens over every official act. That is why it makes sense to protect government when its employees act in good faith. But this immunity should not extend to knowingly improper or unlawful acts. Thus, there must be no immunity for such acts as perjury; making any knowingly false statements that lead a family court to take improper action; knowing or grossly negligent endangerment of children; or the conscious suppression of evidence. For such acts as these, the state government should be liable. Protective mothers who have suffered damages as a result of CPS misconduct should be able to recover compensation from the state government. This

is not only just in itself; it will help to deter further misconduct by CPS caseworkers. All the warnings in the world are likely to be ineffective if the agencies know they have nothing to fear when they violate the guidelines.

We also believe that each state's commissioner of social services (or the equivalent), who presides over the state's CPS officials, should periodically review his or her agency's handling of child abuse/neglect petitions to determine whether such petitions are being properly issued and whether the agency is unduly penalizing mothers who make good-faith accusations of child sex abuse. The commissioner should also seek to determine whether the agency is improperly meddling in private custody cases even when it has no grounds for believing that child abuse or neglect has occurred.

CONCLUSION

We have set out a rather lengthy list of reforms in Part III. Most of them, however, are really self-evident, or would be if basic principles of justice, common sense, and decency were not so often trampled on in the family courts. The rest follow simply and logically from the abuses we have analyzed throughout this book.

In the last analysis, we will have a healthy family court system only when the citizenry demands one. At present, most people believe—wrongly—that no one in the United States of America can lose something as precious as a child without something resembling basic due process of law. Most people believe that if they are good parents, they will not have to watch as their children are pulled from them by police officers. Most assume that if they have managed to live a normal, productive life for thirty years or more, they will not suddenly be declared “insane” in family court on the strength of a quack theory. Most assume that they cannot lose a child—perhaps never to see the child again—because of

rumors, hearsay statements, or a prediction they might violate a court order at some future date. Most believe they cannot be penalized for trying to protect a child.

When American mothers realize just how vulnerable they and their children really are in the family court system of today, they will begin to demand a better one. Then, and only then, will sexually abused children and the women who try to protect them enjoy the security they have always deserved, within a family court system free of the forces of judicial madness it has been our unpleasant duty to record.

ADDENDUM—THE GREENBOOK'S POSITIVE EFFECT ON CHANGING THE ATTITUDES AND PRACTICES OF COURT AUXILIARIES

Since this book's original publication in 2005, some promising developments have occurred within the system, although in our view their effects fall short of what we believe is needed.

One vector of system reform has been the gradual adoption by some within the world of family court auxiliaries (as we have designated them) of ideas first circulated by academics and activists whose work focuses on domestic violence. While these contributions do not always directly address the phenomenon at the center of this book—the backlash of the family court system against a parent who alleges the sexual abuse of a child by the other parent—efforts to make the system respond more justly to mothers who have been the victims of domestic violence can also sensitize those involved in family courts to the legitimate needs of protective parents, some of whom have similarly suffered domestic violence.

A notable example of this sort of reform involves a 1999 publication called *Effective Intervention in Domestic Violence and Child Maltreatment: Guidelines for Policy and Practice*.¹⁷ This publication—as shown in the Prologue—is better known as the “Greenbook” because of the color of its cover. The principal authors, Susan Schechter and Jeffrey Edleson, intended the Greenbook “to present leaders of communities and institutions with a context-setting tool to develop public policy aimed at keeping families safe and stable.”¹⁸ And, since the original publication of *From Madness to Mutiny*, some advocates, working from the Greenbook’s recommendations, have prodded the family court system toward a set of public policies that can aid protective parents while “keeping families safe and stable.”

Such efforts often intersect with strategies suggested in *From Madness to Mutiny*. For example, we have proposed making use of federal legislation—specifically CAPTA—to link the federal funding of each state’s CPS agencies to the agencies’ compliance with civil rights guidelines that safeguard the rights of protective mothers.¹⁹ Taking a similar approach, Kiersten Stewart, director of public policy and advocacy for Futures without Violence (a national nonprofit that combats violence against women and children), has pointed to a significant project—inspired largely by advocates of the Greenbook initiative—in which the US Department of Health and Human Services and the US Department of Justice funded six “demonstration sites” around the country to bring together domestic violence advocates, child protection agencies, the courts, and some “community-based agencies” in order “to implement the Greenbook’s recommendations.”²⁰

In Stewart’s view, the results have been mixed: “While the work has advanced, many of the same obstacles have remained or have been overcome more slowly than initially anticipated.”²¹ With specific reference to CAPTA, she notes that the 2010 reenactment of the statute included language that was consistent with the recommendations of the Greenbook (and of *From Madness to Mutiny*). But she also reports that “child

welfare leaders . . . saw the new CAPTA provisions as supportive of work they were already trying to do, but that without a mandate or new designated funding, it would not lead to wholesale change.”²² This conforms to our own predictions with respect to this issue.

Greenbook-inspired advocates have also criticized the family court and child welfare system for its tendency to blame mothers for observed family problems, even when it should be clear from the facts that the mother is not responsible. As one advocate stated, after bringing together representatives of child welfare agencies with advocates for domestic violence victims:

We discussed practice issues such as using *failure to protect* to remove children from their home When petitions are filed in juvenile court, there are a number of different allegations the child welfare agency can make. One is an allegation of failure to protect, that the survivor has not made choices that ensure the safety of her children. The non-offending parent is accused of failing to protect the child from the abusive and controlling behaviors perpetrated against that parent When domestic violence is an issue in the case, it is important not to have an automatic finding of failure to protect against the non-offending parent, but instead to recognize that abuse is happening to the adult victim and that the perpetrator is exposing the child to the domestic violence. (emphasis added)²³

Another advocate noted some improvement in the phenomenon of mothers involved in CPS cases actually being arrested for domestic violence, although she also noted the need for more progress in this area:

[A]s a result of the Greenbook process, domestic violence advocates were more willing to climb into the boat with survivors who had CPS cases. We do an informal poll of advocates every month, and even though it’s anecdotal information, it is telling.

We ask advocates how many of their domestic violence clients with children have open CPS cases. That number is still over 50%, but the number of clients who also have been arrested for domestic violence has gone down. It used to be 16–20%, and now it's closer to 2–5%. There's still work to be done on this issue, but significant progress has been made.²⁴

Similar initiatives have affected workers directly involved in the court system. Two California judges—Leonard Edwards (retired) and Katherine Lucero—have recorded in some detail the struggle to implement Greenbook strategies in one typical California county. Working with a grant from the David and Lucille Packard Foundation, augmented with support from several offices within the US federal government, Greenbook-inspired advocates undertook in Santa Clara County, California, what Edwards and Lucero called “facilitated cross-system dialogues.”

These dialogues brought together five domestic violence advocacy groups, California's Department of Family and Children's Services (DFCS), and representatives of the courts and law enforcement. Dialogues between the domestic violence advocates and the others was sometimes contentious, as Judge Edwards and Judge Lucero reported in 2019:

They were courageous conversations for us to talk plainly with one another about perceptions, assumptions, and emotional triggers that one group of service providers might have for another. Examples included discussions about “failure to protect” and “why does the parent victim go back.” ...

... People had to speak up and be brave in order for the issues to come out and then be dealt with, named, and healed. These topics often included larger social issues like race, poverty, shortages in mental health services, and housing shortages. This undertaking was very difficult for a county that prided itself on professionalism and polite conversation. Sometimes

the conversations were so uncomfortable that people teared up or started yelling. In the end, however, these conversations made us all braver and more willing to air difficult topics and helped us begin to heal our systems so that we could heal our families

... Each of the individual sectors developed and presented papers on difficult topics such as children witnessing domestic violence or mandated services for domestic violence victims. The goal of these discussions was to identify philosophical differences and agreements and determine how to manage the different approaches of each individual sector. These dialogues were solution-oriented and an excellent way to promote cross-sector collaboration.²⁵

It is evident from this description of “cross-systems dialogues” that prejudice against a mother who has been a victim of domestic violence as well as the parent of an abused child (“Why does the parent victim go back?”) is still firmly rooted in many of the “family court auxiliaries” who are responsible for protecting children who have allegedly been sexually abused by a parent. This is a very significant confirmation of a problem that has long haunted the family court system. Since it is estimated that from 30 percent to 60 percent of cases involving domestic violence also involve child maltreatment,²⁶ it is inevitable that some of the mothers who are domestic violence survivors will be protective parents as well. It is thus important that Greenbook-based initiatives are challenging a prejudice that can readily turn the family court system against mothers who have endured both domestic violence and the prospect of the sexual abuse of their children. These efforts have also stressed the importance of supporting a victimized mother through every step of the court process.²⁷

Other welcome efforts at reform have stressed the importance of reducing reflexive “mother-blaming” and focusing instead on the dam-

age that abusive fathers inflict on families. Even the initial Greenbook approach may not have sufficiently prioritized perpetrator-focused interventions²⁸—but this appears to be changing, as advocates continue to press child welfare agencies toward greater emphasis on stopping abusive behavior in ways that do not penalize innocent mothers.²⁹ Perhaps one of the most significant changes resulting from these initiatives has been the growth and vehemence of public comments on the state of the family court system. In April 2019, hundreds of citizens attended a community meeting in Santa Clara County, California, where county leaders discussed “recommendations regarding responses to sexual assault and domestic violence.” Audience members stayed for three and a half hours to address their own comments to the officials, passionately eager “to tell the local leaders about personal experiences and the gaps that they saw in services to address domestic violence and sexual assault.”³⁰ The days when family court abuses were largely unknown to the public seem to be receding into the past. We can only hope for a still better future.